

24CHCV03494 24CHCV03494

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Case Number: 24CHCV03494 Hearing Date: June 30, 2026 Dept: F49

Dept. F49

Date: 6/30/26

Case Name: Anzhela Abrhamyan; Arman Abrahamyan vs. FCA
US LCC; San Fernando Motor Company; and Does 1 through 30

Case No. 24CHCV03494

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JUNE 30, 2026

MOTION FOR
ATTORNEYS' FEES, COSTS, AND EXPENSES

Los Angeles Superior
Court Case No. 24CHCV03494

Motion filed: 6/3/26

MOVING PARTY: Plaintiffs Anzhela Abrahamyan and
Arman Abrahamyan

RESPONDING PARTY: Defendant FCA US LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court awarding Plaintiffs attorney fees, costs, and expenses in the total amount of \$76,293.28.

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

This matter arises out of alleged fraud and breaches of warranty related to a vehicle purchased by Plaintiffs Anzhela Abrahamyan and Arman Abrahamyan ("Plaintiffs"). On September 30, 2024, Plaintiffs initiated this action against Defendants FCA US LLC ("FCA"), San Fernando Motor Company dba Rydell Chrysler Dodge Jeep Ram ("SFMC," erroneously sued as "San Fernando Motor Company"), and Does 1 through 30 (collectively "Defendants") alleging the following causes of action: fraud and deceit, breaches of warranty pursuant to both the Magnuson-Moss Warranty Act and the Song-Beverly Consumer Warranty Act, violations of Business and Professions Code sections 17200 et seq., and 17500 et seq., negligence, and strict liability. On November 5, 2024, FCA filed an Answer. On December 26, 2024, SFMC filed an Answer.

On October 22, 2025, Plaintiffs filed a Notice of Settlement of Entire Case.

On June 3, 2026, Plaintiffs filed the instant Motion for Attorneys' Fees, Costs, and Expenses (the "Motion").

On June 16, 2026, FCA filed an Opposition.

On June 23, 2026, Plaintiffs filed a Reply.

ANALYSIS

Attorney fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) In a lemon law action, costs and expenses, including

attorney fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)¿

Pursuant to the Song-Beverly

Consumer Warranty Act, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)¿

The attorney bears the burden of

proof as to the “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)¿

A plaintiff’s verified billing

invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Medical Management Systems, Inc. v. Cal. Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Board of Trustees of Cal. State University (2005) 132 Cal.App.4th 359, 395.)¿

In determining reasonable

attorney fees, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include

(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

A. Attorney Fees

(1) Prevailing Buyer

Plaintiffs

contend that Plaintiffs are prevailing buyers entitled to attorney fees, costs, and expenses because the settlement agreement between the parties so designates. (Mot., at p. 8.) FCA does not dispute that Plaintiffs are the prevailing party. Instead, FCA asserts that the claimed fees are excessive given the nature of the action. The Court accordingly finds that Plaintiffs are prevailing buyers pursuant to Civil Code section 1794, subdivision (d).

(2) Reasonableness of Hourly Rates

The reasonable hourly rate is the “prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis in original.) “The experienced trial judge is the best judge of the value of professional services rendered in [their] court.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1086.)

Plaintiffs seek to recover attorney fees for work performed by four individuals at rates Plaintiffs contend are reasonable:

(1)

attorney Hovanes Margarian at an hourly rate of \$650 prior to July 1, 2025 and \$750 thereafter;

(2)

attorney Akop Jack Ter-Saakyan (“Ter-Saakyan”) at an hourly rate of \$700;

(3)

attorney Shushanik Margarian at an hourly rate of \$550 prior

to July 1, 2025 and \$670 thereafter; and

(4)

legal assistant Elmira Oganyan at an hourly rate of \$150.

(Mot., at pp. 5, 11-12.) In support of these rates, each attorney attests to their education, qualifications, and experience. (H. Margarian Decl., ¶¶ 2-4, 13; S. Margarian Decl., ¶¶ 2-3; Ter-Saakyan Decl., ¶¶ 2-3.) In presenting their qualifications and experience, each attorney also cites cases in which the foregoing rates were approved. (H. Margarian Decl., ¶¶ 18-19, 13; S. Margarian Decl., ¶¶ 12-16; Ter-Saakyan Decl., ¶¶ 9-12.) Plaintiffs also attach a copy of the current Laffey Matrix to support that the requested fees are reasonable. (H. Margarian Decl., Exh. B.)

However, the Motion indicates that the foregoing rates were charged in contingent litigation. The proper hourly rate for calculation of the lodestar is that for non-contingent litigation. (See Ketchum, supra, 24 Cal.4th, at p. 1133.) Contingency risk is a factor for consideration in determining the multiplier, not the lodestar. (Ibid.)

The Motion indicates that the attorneys' regular rates for non-contingent litigation are lower. Specifically, Hovanes Margarian currently charges \$650 per hour, Ter-Saakyan charges \$600 per hour, and Shushanik Margarian charges \$570 per hour, rates that are \$100 lower than their requested contingent rates. (Mot., at p. 12.) At this \$100 "discount," the non-contingent hourly rates for the attorneys would be as follows:

(1)

Hovanes Margarian: \$550 prior to July 1, 2025 and \$650 thereafter,

(2)

Ter-Saakyan: \$600, and

(3)

Shushanik Margarian: \$450 prior to July 1, 2025 and \$570 thereafter.

In Opposition, FCA argues that the

hourly rates for all attorneys should reflect the rates reported in the 2023 Real Rate Report for consumer goods litigation and limit senior attorneys to \$495 per hour, the mean rate reported for 2023, and associates to \$295 per hour, the median rate reported for the same year. (Opp'n, at p. 4; Zurita-Cruz Decl., Exh. B.) Plaintiffs assert in Reply that this report was already outdated when the action was filed because it includes industry analysis for the years 2021-2023, and a more recent Real Rate Report has been published. (Reply, at pp. 6-7.) The Court agrees that the 2023 Real Rate report is not relevant to this action. While the Court acknowledges that it has discretion to reduce hourly rates to be commensurate with the nature of the case, the foregoing non-contingent rates generally align with awards the Court has previously found to be reasonable.

(3) Reasonableness of Hours Incurred

Plaintiffs support the requested lodestar figure with a billing summary reflecting 117 hours of legal work performed across multiple stages of litigation, including case preparation, discovery, settlement, and preparation and filing of the Motion. (H. Margarian Decl., Exh. A.) Hovanes Margarian attests that the billing summary is a true and correct itemization of the billing incurred in this matter and the related action to enforce the settlement agreement (Id., ¶ 9.) This billing statement is sufficient to establish that the hours were necessarily incurred. (Hadley, *supra*, 167 Cal.App.3d, at p. 682.) The burden is thus on FCA to challenge specific items with adequate authority and evidence.

FCA argues that the fees requested should be reduced by at least 35 percent because the billing entries are excessive and unreasonable. (Opp'n, at pp. 4-5.) Specifically, FCA contends that the following work is unreasonably claimed: (1) all time billed for Plaintiffs' separate breach of contract action against FCA; (2) time billed for Hovanes Margarian to review the work of senior attorneys and subsequent time for "finalization" of papers; (3) time billed for clerical tasks; and (4) time billed for conducting a duplicative second vehicle inspection. (Id., at pp. 5-8.) FCA further contends that the following work is excessively billed: (1) time spent drafting, reviewing, and finalizing template discovery; (2) time reviewing hours in preparation for this fee motion; and (3) time spent preparing the Motion. (Id., at pp. 7-9.)

(a)

The Breach of Contract Action

First, FCA contends that Plaintiffs are not entitled to any attorney fees for the separate breach of contract action because the settlement agreement does not provide for recovery of fees for enforcement of the agreement. (Opp'n, at p. 5.) FCA asserts that the breach of contract action was not brought pursuant to the Song-Beverly Act and is thus not subject to the Civil Code section 1794 attorney's fees provision. (Ibid.)

Plaintiffs assert that the breach of contract action was necessary to compel FCA to fulfill its obligation in the instant action and was filed as a direct result of FCA's failure to perform its obligations under the settlement agreement. (Reply, at p. 10.) Plaintiffs contend that all fees in the breach of contract action are accordingly recoverable under section 1794, subdivision (d). (Ibid.)

Pursuant to Civil Code section 1794, subdivision (d), a prevailing buyer is entitled to recover attorney's fees "reasonably incurred by the buyer in connection with the commencement and prosecution of" an action under section 1794. The Court agrees with FCA that the plain meaning of section 1794, subdivision (d) precludes recovery of fees for filing a separate action. Initiating and pursuing the breach of contract action constitutes neither commencement nor prosecution of the instant Song-Beverly action, and stands as a separate enforcement action that is not compensable under the Song-Beverly Act.

The Court accordingly finds the billing entries connected to the breach of contract action to be unreasonable and subtracts the following hours claimed by Plaintiffs: 1.5 hours from the billing entries of Hovanes Margarian after July 1, 2025; 8.9 hours from the billing entries of Akop Jack Ter-Saakyan; and 1.6 hours from the billing entries of Shushanik Margarian after July 1, 2025.

(b)

Review and Finalization of Senior Attorney Work

FCA also argues that all time associated with Hovanes Margarian reviewing the work of senior attorneys and the subsequent finalization of the work by the senior attorneys should be

disallowed as unnecessarily incurred. (Opp'n, at p. 6.) FCA asserts that the work of senior attorneys should not require review because the attorneys should have the skill and expertise necessary to sign filings themselves. (Id., at pp. 6-7.)

In Reply, Plaintiffs assert that all documents bearing Hovanes Margarian's signature necessarily require his review and approval to ensure accuracy, consistency with case strategy, and compliance with professional and ethical obligations, and that rather than being unnecessarily duplicative, such review represents proper supervision and oversight. (Reply, at p. 11.) FCA provides no authority for discounting supervisory review of documents submitted to the Court. The Court accordingly agrees that it would be improper to penalize such supervision.

(c)

Clerical Entries

A trial court retains discretion to reduce a fee amount where apparently clerical tasks are billed at excessive rates. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1188 [finding no abuse of discretion where trial court found partner rates for tasks such as calendaring and preparing proofs of service to be excessive].)

FCA contends that \$2,015.00 in billing entries are not compensable because they represent clerical tasks such as calendaring, proofreading, and updating files. (Opp'n, at p. 8.) Plaintiffs rely on *Lolley v. Campbell* (2002) 28 Cal.4th 367 and *Hayward v. Ventura Volvo* (2003) 108 Cal.App.4th 509 to argue that, under fee-shifting statutes, fees are compensable even where a client does not have a personal obligation to pay for them. (Opp'n, at p. 14.) Those cases are inapposite. *Lolley* concerned whether an attorney representing an indigent client at no cost to the client could recover statutory attorney's fees, and did not involve the question of the nature of work that was compensable. (*Lolley*, supra, at p. 376.) *Hayward* considered only whether a fee award was limited to the contractual amount agreed upon between the client and attorney in a contingent fee arrangement. (*Hayward*, supra, at pp. 511-513.) Neither case considered the reasonableness of claiming fees for clerical work. The Court is accordingly unpersuaded by Plaintiffs' contention.

The Court agrees with FCA that certain work appears rote or clerical in nature and is not compensable, including billing entries for receipt of documents, ordering service, calendaring deadlines, and non-attorney proofreading and formatting of documents. The Court accordingly discounts 6.1 hours from the billing entries of Elmira Oganyan and 2.2 hours from the billing entries of Shushanik Margarian prior to July 1, 2025.

(d)

Second Vehicle Inspection

FCA asserts that the \$2,870.00 in total time billed for a second vehicle inspection is unduly cumulative because the purpose of the second inspection could have been achieved during the first inspection six months prior. (Opp'n, at pp. 8-9.)

In Reply, Plaintiffs contend that the purpose of each inspection was distinct, the first being a preliminary inspection for further case prosecution and the second an expert inspection. (Reply, at pp. 14-15.) The billing records support this characterization, showing that the first inspection was a preliminary visual inspection and test driving of the vehicle that took place just after Plaintiffs' counsel began representation. (H. Margarian Decl., Exh. A.) Entries related to the second inspection, on the other hand, involved sending documentation to and conducting an inspection with Plaintiffs' retained expert to more accurately assess the case. (Ibid.) The Court agrees that preliminary case evaluation and expert evaluation serve different purposes and that both may be necessary to the conduct of litigation.

Moreover, Plaintiffs note that FCA does not dispute any of the costs claimed, which include the costs for the retained expert to conduct the inspection and the associated inspection facility charge, tacitly agreeing that the expert's inspection was reasonable. (Id., at p. 15; see Memorandum of Costs, Worksheet, at pp. 3-4.)

Based on the foregoing, the Court finds the inspection fees to be reasonable.

(e)

Discovery

FCA contends that the \$12,480.00 claimed for time spent drafting, reviewing, and finalizing Plaintiffs' discovery are excessive and unreasonable. (Opp'n, at p. 7.) FCA argues that the discovery requests are template discovery that are not case-specific and do not require two attorneys and a total of 22.5 hours to prepare. (Ibid.)

Plaintiffs argue that the discovery was necessary because it related to the merits of the case and sought to obtain relevant evidence pertaining to each cause of action and Defendants' affirmative defenses. (Reply, at pp. 11-12.) Plaintiffs aver that, while the discovery was template-based, each request required individualization to Plaintiff and the instant action. (Id., at p. 12.)

Upon review, the entries to which FCA objects are those connected with Plaintiffs' counsels' review of Defendants' discovery responses and preparation of deposition subpoenas for five deponents. (See Zurita-Cruz Decl., Exh. A.) Those billing records reflect that hundreds of pages of responses were served to Plaintiffs' discovery requests. (Ibid.) Given the amount of discovery produced, the Court finds the time spent reviewing it to be reasonable.

(f)

The Fee Motion

FCA asserts that both the time billed for preparing "the breakdown of hours expended" by each attorney on this Motion and the time billed for preparing the Motion are excessive. (Opp'n, at pp. 7-8, 9.) FCA contends that preparing a billing summary would not have required 5.2 hours of work by three separate attorneys, and that the Motion is a routine, template fee motion that does not justify the 16.6 hours of work claimed. (Ibid.)

Plaintiffs argue that it was necessary for each attorney to confirm the accuracy of the time they personally billed, and that each attorney's review of time billed was limited to his or her own, individual billing entries. (Reply, at p. 13.) Upon review, the entries related to the billing summary include each attorney's independent review of his or her own time entries, preparation of the billing summary, and supervisory review and of the summary and motion package. (See H. Margarian

Decl., Exh. A.) The relative time each attorney spent reviewing the entries appears proportional to the total time expended by each attorney on the case. The entries are thus not facially improper, and FCA provides no evidence beyond general assertions that they seem excessive. The Court accordingly finds these fees to be reasonable.

As to preparation of the Motion and supporting declarations, Plaintiffs contend that the Motion involved more than mere template customization and that the Reply took more time than anticipated to ensure a thorough and thoughtful response. (Reply, at pp. 6-7.) Given the comprehensive nature of the moving and reply papers, the Court does not find the hours billed to be excessive.

Based on the foregoing, the Court determines the lodestar amount to be \$50,731.00, as represented by the following chart.

Name

Hours

Rate

Total

Hovanes Margarian (pre-July 1, 2025)

5.3

\$550.00

\$2,915.00

Hovanes Margarian (July 1, 2025-present)

12.4

\$650.00

\$8,060.00

Akop Jack Ter-Saakyan

20.8

\$600.00

\$12,480.00

Shushanik Margarian (pre-July 1, 2025)

49.3

\$450.00

\$22,185.00

Shushanik Margarian (July 1, 2025-present)

8.8

\$570.00

\$5,016.00

Elmira Oganyan

0.5

\$150.00

\$75.00

(4) Lodestar Multiplier

Once the lodestar

figure is determined, the Court may adjust the figure based on relevant factors. (Ketchum, supra, 24 Cal.4th, at p. 1132.) Factors that may be relevant include: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which

the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ibid.)

Plaintiffs request an unspecified lodestar enhancement based on the risks undertaken in the representation and the skill and expertise of counsel. (Mot., at p. 17.) FCA argues that a negative multiplier should be applied because this action presented no novel or difficult issues and lemon law motions are not, by their nature, complex. (Opp’n, at p. 10.)

The Court notes that Plaintiffs’ counsel took the case on a contingency basis, risking nonpayment or payment incommensurate with the time invested in the case. (See H. Margarian Decl., ¶ 20.) Considering all factors raised, however, the Court finds that neither a positive nor negative multiplier is warranted. While Plaintiffs’ counsel achieved a successful result for the client and did undertake some risk, the experience of counsel is already factored into the lodestar, and the action was a straightforward and routine lemon law matter.

Based on the foregoing, the Court GRANTS Plaintiffs’ Motion for Attorneys’ Fees in the reduced amount of \$50,731.00.

B. Reasonable Costs and Expenses

Under the Song-Beverly Act, a prevailing buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses. (See Civ. Code § 1794, subd. (d).) A properly verified memorandum of costs generally satisfies the prevailing party’s initial burden of establishing that the claimed costs were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

Here, Plaintiffs submit a Memorandum of Costs itemizing costs for filing, witness, and copying fees totaling \$5,790.28. (Memorandum of Costs (“Cost Memo”), at p. 1.) Plaintiffs’ counsel attests that they were incurred in litigating this matter and the related enforcement action. (H. Margarian Decl., ¶ 56.)

Defendant does not dispute the reasonableness of the claimed costs.

Accordingly,
the Court GRANTS the Motion as to costs and expenses.

CONCLUSION

Plaintiffs Anzhela Abrahamyan and Arman Abrahamyan's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED IN PART. The Court awards \$50,731.00 in reasonable attorney fees and \$5,790.28 in costs, in favor of Plaintiffs and against Defendants.

Moving party to give notice.